This nation can only truly prosper when all of its citizens are guaranteed equal rights and equal protection under the law and in every State. I am committed to ensuring equality for all Americans, regardless of sexual orientation, gender identity, or gender expression. As a lawyer, judge, and Member of Congress, I have spent my entire life fighting for equal rights for all Americans and am proud of my 100 percent pro-equality voting record regarding legislation that affects the gay, lesbian, bisexual, and transgender (GLBT) community.

Hate Crimes

On April 29, 2009, I proudly voted in support of H.R. 1913, the *Matthew Shepard and James Byrd Jr. Hate Crimes Prevention Act*
, also known as the
Matthew Sheppard Act
in memory of the 21-year old University of Wyoming student who was brutally tortured and murdered in 1998 because he was gay. On October 28, 2009, President Obama signed the *Matthew Shepard and James Byrd Jr. Hate Crimes Prevention Act*
into law. The passage of this legislation is a testament to our resolve to end violence based on prejudice and hate and to guarantee that all Americans need not live in fear because of who they are.

Don't Ask, Don't Tell

On December 15, 2010, I proudly voted in favor of H.R. 2965, the *Don't Ask, Don't Tell Repeal Act of 2010* , which passed by a vote of 250-175. I am pleased to share that the Senate passed this measure three days later. President Obama signed the bill into law on December 22, 2010, as Public Law 111-321.

After 17 years of controversy and debate, the 1993 law that bans open service by gay and lesbian Americans in the military will be replaced with a policy of inclusion and non-discrimination. The passage of the *Don't Ask, Don't Tell Repeal Act* confirms what the majority of service members, their families, and Americans hold true, that discrimination on the basis of sexual orientation runs counter to the values that our Armed Forces embody.

I truly appreciate everything that our brave men and women in uniform do each and every single day to protect our freedom and keep us safe. Open service allows us to finally give all our troops the true recognition that they deserve. By repealing Don't Ask, Don't Tell, the United States reaffirms its commitment to honor, integrity, and equality for all.

Verified

Gay Marriage

The *Defense of Marriage Act* (DOMA) gives States the "right" to refuse to recognize same-sex marriages performed in other States and, for federal purposes, defines marriage as between one man and one woman as husband and wife. Through DOMA, the federal government selectively withholds critical protections and obligations that otherwise would be afforded to legally married gay and lesbian couples.

DOMA is unconstitutional, unconscionable, and illogical. In the 111th Congress, I was a proud original co-sponsor of H.R. 3567, the
*Respect for Marriage Act of 2009**
, which repeals DOMA and would ensure that all married couples are treated equally under federal law.

Done

Non-Discrimination

Qualified, hardworking Americans are denied job opportunities, harassed, fired, or otherwise discriminated against just because they are lesbian, gay, bisexual, or transgender. There is no federal law that consistently protects GLBT individuals from employment discrimination; it remains legal in 29 states to discriminate based on sexual orientation, and in 38 states to do so based on gender identity or expression. As a result, GLBT persons face serious discrimination in employment.

In the 111th Congress, I was a proud original co-sponsor of H.R. 3017, the *Employment Non-Discrimination Act of 2009*
(ENDA)*, which includes actual or perceived sexual orientation, gender identity, and gender expression under its protection.

Further Legislation*

In addition, I was also a proud co-sponsor of the following pieces of legislation, which seek to extend rights and protections to the GLBT community at home, in schools, in the workplace, within the health care system, and across international borders:

- H.Con.Res. 92, Supporting the goals and ideals of the National Day of Silence in bringing attention to anti-lesbian, gay, bisexual, and transgender name-calling, bullying, and harassment faced by individuals in schools
- H.R. 1024, Uniting American Families Act of 2009
- H.R. 1723, Family Leave Insurance Act of 2009
- H.R. 2132, Family and Medical Leave Inclusion Act
- H.R. 2262, Safe Schools Improvement Act
- H.R. 2517, Domestic Partnership Benefits and Obligations Act of 2009 (Original Co-sponsor)
- H.R. 2625, Tax Equity for Health Plan Beneficiaries Act of 2009
- H.R. 2709, Reuniting Families Act

These bills reflect our country's 234 year-old tradition of protecting liberty, freedom, and acceptance by protecting and recognizing the human dignity of every person. While GLBT equality has come a long way in recent decades, there is still much to do. As we begin the 112th Congress, rest assured that I will not give up on my efforts until GLBT discrimination in our laws goes the way of all those other outdated, bigoted beliefs we have dispelled over the years.

*Please note that any bill not passed by the end of the 111th Congress must be reintroduced in the 112th Congress, which began on January 5, 2011.

Checked